

24SMCV02528 24SMCV02528

County: los-angeles

Division: Civil Law and Motion

Department: N

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Case Number: 24SMCV02528 Hearing Date: September 3, 2026 Dept: N

TENTATIVE RULING

Defendant Astrid Beigel's motion to bifurcate the trial into liability and damages phases is DENIED.

Defendant Beigel to give notice.

REASONING

Defendant Beigel moves for bifurcation on a position of no liability due to Plaintiff being illegally present in the intersection outside the crosswalk, and failing to yield to traffic with vehicles moving on a green light. Requiring trial on the damages phase is both inefficient and potentially prejudicial. Plaintiff in opposition challenges any attempts to adjudicate liability based on an inadmissible traffic report. Plaintiff also maintains that any testimony from Plaintiff and other witnesses about the accident, will inevitably lead to testimony involving the subsequent impacts to Plaintiff following the collision. Bifurcation will therefore not sufficiently reduce potential jury bias. Beigel in reply engages in qualitative challenges regarding liability, and reiterates the purpose of the bifurcation motion.

Legal Standard

Code of Civil Procedure section 598 states in part: "The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order, no later than the close of pretrial conference in cases in which such pretrial conference is to be held, or, in other cases, no later than 30 days before the trial date, that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case, except for special defenses which may be tried first pursuant to Sections 597 and 597.5."

The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States. (Code Civ. Proc., § 1048, subd. (b).)

Liability and Damages

The court finds bifurcation will not yield greater efficiency. With the qualitative and traffic report admissibility issues acknowledged, the court still finds the possibility that at least some of the witnesses may testify as to both liability and damages. Should Beigel not prevail on the liability phase, a bifurcated trial will likely require reintroduction of certain evidence, and extend the trial simply based on the bifurcation structure itself. (*Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 888.) On prejudice, any issues under Evidence Code sections 352 can be addressed in motions in limine and jury instructions. (Evid. Code, § 352.) The prejudice arguments otherwise insufficiently support the requested relief.

The motion is denied without prejudice. Trial remains set for September 28, 2026.